

2020 M L D 2018

[Lahore]

Before Jawad Hassan, J

Messrs ASK CONSTRUCTION---Petitioner

Versus

PUNJAB PROVINCE and others---Respondents

Writ Petition No.39538 of 2020, decided on 8th September, 2020.

Constitution of Pakistan---

---Arts. 199, 4 & 5---Constitutional petition---Right of individuals to be dealt in accordance with law---Loyalty to State and obedience to the Constitution and law---Scope---Petitioner, a government contractor, sought direction to the respondents/authorities to release his admitted dues which were being held up without any legal justification---Validity---Article 4 of the Constitution clarified that it was the inalienable right of every citizen to enjoy the protection of law and to be treated in accordance with law and no action detrimental to the life, liberty, body, reputation or property of a person would be taken except in accordance with law---Article 5(2) of the Constitution provided that obedience to the Constitution and law was the inviolable obligation of every citizen---High Court remitted a copy of writ petition to the authorities, who were directed to hear the petitioner and decide the issue of payment of his outstanding amount, if any, after verifying the relevant record.

Afrah Enterprises (Pvt.) Limited v. Province of Punjab and others 2005 CLC 1303; Messrs Airport Support Services v. The Airport Manager, Quaid-e-Azam International Airport, Karachi and others 1998 SCMR 2268; Messrs Huffaz Saemless Pipe Industries Ltd. v. Sui Northern Gas Pipeline Ltd. and others 1998 CLC 1890 and Tahir Mirza v. Saleha Mehmood, DCO and others 2019 YLR 2852 ref.

Messrs Usmani Associates v. Pakistan Housing Authority through Managing Director and 2 others 2005 MLD 233; National Commission on Status of Women through Chairperson and others v. Government of Pakistan through secretary Law and Justice and others PLD 2019 SC 218; Watan Party and another v. Federation of Pakistan and others PLD 2011 SC 997 and President of Balochistan High Court Bar Association and others v. Federation of Pakistan and others 2012 SCMR 1784 rel.

Riaz Karim Qureshi for Petitioner.

Barrister Umair Khan Niazi, Additional Advocate General, Punjab (On Court's call).

ORDER

JAWAD HASSAN, J.---The Petitioner has filed this writ of mandamus under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") to direct the Respondents, to do, what is required by law to do, and in this case to release his admitted dues which are being held up without any legal justification.

2. Learned counsel submits that the Petitioner is an approved Government Contractor and he was awarded certain works through acceptance letters dated 29th of December, 2015 and 30th of December, 2015 issued by the District Officer Road, Highway City Division No.1, Lahore. He further submits that the Petitioner started construction work and completed the same to the entire satisfaction of the Respondents as can be seen from the final bills which are appended with this petition as Annexures C and D but his amount/dues are not being released by the competent authority, hence, this petition.

3. Learned Law Officer has raised objection on the maintainability of this petition on the ground that no final order is in the field, as such, the writ is premature. He further submits that this Court cannot intervene in such like matters because the controversy involved can only be resolved by the appropriate forum on the basis of evidence/material produced by the parties. He has placed reliance on the judgment of this Court reported as *Afrah Enterprises (Pvt.) Limited v. Province of Punjab and others* (2005 CLC 1303).

4. When confronted with the above position, learned counsel for the Petitioner submits that the Petitioner has knocked the door of this Court only for seeking a direction to the Respondent No.3 only to release the amount/dues for the work done by him in connection with the aforesaid construction project, which liability has also been admitted/ascertained by the Respondents. He further submits that this Court has already granted relief to a Government Contractor in a similar case reported as *Messrs Usmani Associates v. Pakistan Housing Authority through Managing Director and 2 others* (2005 MLD 233). Reliance is also placed on the cases of *Messrs Airport Support Services v. The Airport Manager Quaid-e-Azam International Airport. Karachi and others* (1998 SCMR 2268) and *Messrs Huffaz Seamless Pipe Industries Ltd. v. Sui Northern Gas Pipelines Ltd. and others* (1998 CLC 1890).

5. Arguments heard. Record perused.

6. Article 4 of the Constitution makes it very clear that it is the inalienable right of every citizen to enjoy the protection of law and to be treated in accordance with law and no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law. The Hon'ble apex Court of the Country in the case of *National Commission on Status of Women through Chairperson and others v. Government of Pakistan through Secretary Law and Justice and others* (PLD 2019 SC 218) expounded the scope of Article 4 of the Constitution by holding that Adverting to international law on the subject, it is pertinent to note that Pakistan is a signatory to the Universal Declaration of Human Rights (UDHR) since 1948, Articles 7 and 8 whereof are relevant which provide as under: -

"7. All are equal before the law and are entitled without any discrimination to equal protection of the law. All are entitled to equal protection against any discrimination in

violation of this Declaration and against any incitement to such discrimination.

8. Everyone has the right to an effective remedy by the competent national tribunals for acts violating the fundamental rights granted to him by the Constitution or by law."

7. Further, Article 5(2) of the Constitution states that Obedience to the Constitution and law is the inviolable obligation of every citizen. The Honourable Full Bench of the Supreme Court of Pakistan in the judgment cited as *Watan Party and another v. Federation of Pakistan, and others* PLD 2011 SC 997) has held that Article 4 thereof remained fully operative, which laid down that to enjoy the protection of law and to be treated in accordance with law is the inalienable right of every citizen, wherever he may be, and of every other person for the time being within Pakistan and in particular no action detrimental to the life, liberty, body, reputation or property of any person would be taken except in accordance with law. The august Supreme Court in the case reported as *President Balochistan High Court Bar Association and others v.. Federation of Pakistan and others* (2012 SCMR 1784) has further held that "to be loyal to the State is the basic duty of all citizens and they have to be obedient to the Constitution and the law, wherever they may be. Similarly, it is also inviolable obligation of every person for the time being within Pakistan. Thus, adherence to the Constitution and the Law by the citizens, who are officials or otherwise, is mandatory. Non-compliance of the Constitution and the Law makes a citizen liable for action, in accordance with law". These principles have also been discussed in detail by this Court in *Tahir Mirza v. Saleha Mehmood, DCO and others* (2019 YLR 2852).

8. In the case of *Messrs Usmani Associates* (supra) this Court, while allowing the writ petition vide judgment dated 27th of October, 2004, directed the Respondent concerned to make payment to the Petitioner of that writ petition for the work done. The relevant portion of the said judgment is given below:-

"11. In reply to the petition, contents of Para. No.10 of the petition have not been denied by the Respondent but it is stated that the claim of the Petitioner arising out of termination under sub-clause 75.1 was verified by the Respondent No.2 and payment of verified amount recommended by Respondent No.2 is pending due to non-availability of funds from the Government. It is the principle of law contained in Order XII, C.P.C. Rule 6, C.P.C. that any party may, at any stage of a suit, where admissions of fact have been made either in the pleadings or otherwise, apply to the Court for such judgment or order as upon such admissions he may be entitled to, without waiting for the determination of any other question between the parties; and the Court may upon such application make such order, or give such judgment, as the Court may think just. I am fortified for this view by the cases reported as *Macdonald Layton and Company Pakistan Ltd. v. Usin Export-Import Foreign Trade Co. and others* (1996 SCMR 696) and *Lal Muhammad v. Additional District Judge, Gujranwala and others* (1983 CLC 770). Non-availability of funds from the Government to Respondent No.1, to my mind, is no ground not to make the payment for the work done by the Petitioner for no fault of his, when he has been knocking the door of the Respondent by writing continuously.

For what has been discussed above, this writ petition is allowed. The Respondent

No.2 is directed to make payment of Rs.1 09 94 756 minus Rs.2,745,500 with interest to the Petitioner within one month of the passing of this order. The petition is disposed of ".

9. In view of the above, a copy of this writ petition along with all the annexures is remitted to the Respondent No.3 who shall hear the Petitioner and decide the issue of payment of his outstanding amount/dues, if any, after verifying the relevant record and considering the Constitutional provisions as well as the case law discussed above as early as possible but not later than four weeks from the receipt of certified copy of this order.

Disposed of.

SA/A-63/L

Order accordingly.